

HOUSE No. 1723

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate the charitable immunity cap.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/7/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/20/2025</i>

HOUSE No. 1723

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 1723) of Carmine Lawrence Gentile, Mary S. Keefe and Michael O. Moore for legislation to eliminate the charitable immunity defense in certain court actions. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1524 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate the charitable immunity cap.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 85K of Chapter 231 of the General Laws, as appearing in the 2022 Official
2 Edition is hereby amended by striking out the entire section and inserting in place thereof the
3 following section:

4 Section 85K. It shall not constitute a defense to any cause of action based on tort brought
5 against a corporation, trustees of a trust, or members of an association that said corporation, trust
6 or association is, or at the time of the cause of action arose was, a charity.